

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Helsel v. West Coast Mennonite Central Committee, Inc.***
Superior Court Case No. 25CECG03228

Hearing Date: July 23, 2026 (Dept. 503)

Motion: Cross-Defendant's Motion to Strike Request for Punitive Damages

Tentative Ruling:

To grant cross-defendants' motion to strike the allegations and prayer for punitive damages from the complaint, without leave to amend. In particular, the court strikes paragraph 29 and the prayer for punitive damages from the First Amended Cross-Complaint.

Explanation:

Cross-defendants Jason Helsel and Melissa Helsel, as Trustees of the Helsel Family Trust, Mark Vogt, and John Fowler (collectively "cross-defendants") move for an order striking allegations seeking punitive damages in connection with cross-complainant West Coast Mennonite Central Committee, Inc.'s cross-complaint alleging trespass on their property.

Civil Code section 3294 states that, "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civ. Code, § 3294, subd. (a).) "'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1), emphasis added.)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255, internal citations omitted.) However, conclusory allegations of malice, fraud, or oppression will not suffice to support a claim for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

"The adjective 'despicable' connotes conduct that is "... so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." "[A] breach of a fiduciary duty alone without malice, fraud or oppression does not permit an award of punitive damages. The wrongdoer "must act with the intent to vex, injure, or annoy, or with a conscious

